

**AGREEMENT FOR
USE OF PRESCRIPTION DRUG PLAN FORMULARY, PHARMACY
NETWORK, AND PRICING INFORMATION
PUBLIC USE FILES**

The Prescription Drug Plan Formulary, Pharmacy Network, and Pricing Information Public Use Files are public use files being provided by the Centers for Medicare & Medicaid Services (CMS). **By downloading and using the Formulary, Pharmacy Network, and Pricing Information Public Use Files, the User agrees to comply with this agreement.**

This disclaimer outlines the responsibility of CMS and the User in regards to the processing and understanding of the data files.

- The User acknowledges that the Formulary, Pharmacy Network, and Pricing Information are submitted to CMS by Part D sponsors as a condition of their participation in the Medicare Part D Prescription Drug Benefit Program.
- CMS provides the expected monthly and quarterly release dates but cannot guarantee the release of these data files to meet any timeframe.
- The information provided is as of the date listed, and may have since been updated on the Medicare Plan Finder tool. Users should also familiarize themselves with any modifications to the information or technical specifications when using these data across plan years; please see the File Record Layout.
- The user shall not use the information in a manner that is inaccurate or misleading.
- CMS has no responsibility for the data file after it has been converted, processed or otherwise altered. CMS has no responsibility for assisting users with converting the data to another format.